

Calendar Line 2

Case Name: In the Matter of: THE JANET F. ELY SURVIVOR’S TRUST
Case No.: 25PR200360

INTRODUCTION

In 2004, Janet F. Ely (“Trustor”) executed the Jerry R. and Janet F. Ely Revocable Living Trust. Under the terms of that trust, a survivor’s trust was created upon the death of Jerry R. Ely. Trustor passed away in 2024.

Petitioner Samantha Jeanne Smith (“Petitioner”), a beneficiary of the survivor’s trust, initiated this action by filing a petition for an accounting, removal of trustees Spencer Calvin Smith and Cameron Baxter Smith (“Respondent”), distribution, and redress of breach of trust. Respondents opposed the petition and filed a petition for approval of trust accounting, which Petitioner has opposed.

Currently before the court is Respondents’ motion to compel further responses from Petitioner to their discovery requests. Petitioner has opposed the motion and Respondents have filed a reply.

DISCUSSION

Respondents seek further responses to their special interrogatories, set one, numbers 2 through 35; requests for admission, set one, numbers 6, 7, 13, 15, 16, 17, 18, 19, 20, 26, 29, 30, 31, 34, and 35; and requests for production, set one, numbers 9 through 17, 24, 26, and 27.

I. MEET AND CONFER

Petitioner asserts that Respondents failed to adequately meet and confer and requests that the motion be denied for that reason. Each of the statutes governing the motion to compel contain the requirement that the motion be accompanied by “a meet and confer declaration under [Code of Civil Procedure] Section 2016.040.” (Code Civ. Proc., §§ 2030.300, subd. (b)(1) [interrogatories], 2033.290, subd. (b)(1) [requests for admission], 2031.310, subd. (b)(2) [requests for production].)¹ Section 2016.040 requires that the moving party make a “reasonable and good faith attempt at an informal resolution of each issue presented by the motion.”

The meet and confer requirement is designed “to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order,” which in turn “will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (*Townsend v. Sup. Ct.* (1998) 61 Cal.App.4th 1431, 1435 (*Townsend*)). The level of effort required to satisfy the “reasonable and good faith attempt” standard depends upon the circumstances presented.

¹ Further undesignated statutory references are to the Code of Civil Procedure.

(*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.) Minimally, a reasonable and good faith attempt at informal resolution requires the parties to present the merits of their respective positions with candor, specificity, and support. (*Townsend, supra*, 61 Cal.App.4th at p. 1435.)

Here, Petitioner contends that Respondents only sent a meet and confer letter but, when she sent a responsive letter offering to confer further, Respondents did not attempt any further meet and confer. The Court has reviewed the detailed meet and confer letters sent by both sides and it finds Respondents' meet and confer adequate. Notably, Petitioner's counsel ended her letter with: "If you wish to discuss narrowing the scope of your discovery requests to comply with the Code of Civil Procedure and to focus on information that is actually relevant to the issues in this case, I am available to confer. Otherwise, we will address these issues through a motion for protective order or in opposition to any motion to compel that you may file." (Declaration of Timothy D. Henry in Support of Motion, Ex. F.) Although Petitioner frames this as an invitation for further meet and confer, it appears to only invite Respondents to make concessions on their end. Moreover, in reply, Respondents assert that counsel for the parties met and conferred via phone but that Petitioner's counsel ended that call with foul language. (See Reply, p. 3:18-22.)² Under these circumstances, the Court finds Respondents' meet and confer efforts to be sufficient.

II. LEGAL BACKGROUND

A. SPECIAL INTERROGATORIES

A responding party must provide non-evasive answers to interrogatories that are "as complete and straightforward...to the extent possible," and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (§ 2030.220.) If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party's remedy is to seek a court order compelling a further response to the interrogatories. (§ 2030.300.)

B. REQUESTS FOR ADMISSION

Section 2033.220 provides, "(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits. [¶] (b) Each answer shall: [¶] (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. [¶] (c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter."

² While the reply is not signed under penalty of perjury, Respondents' counsel asserts under penalty of perjury that Petitioner's counsel used foul language in Respondents' counsel's declaration in support of their opposition to Petitioner's petition to disqualify Respondents' counsel. That declaration is attached to the reply as Exhibit A.

Section 2033.290, subdivision (a) provides, “On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: [¶] (1) An answer to a particular request is evasive or incomplete. [¶] (2) An objection to a particular request is without merit or too general.”

C. REQUESTS FOR PRODUCTION

A responding party to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply, (2) a representation of inability to comply, or (3) objections. (Code Civ. Proc., § 2031.210.) Additionally, section 2031.230 requires that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.” If a party demanding a response to an inspection demand deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general, that party may move for an order compelling further response to the demand. (§ 2031.310, subd. (a).)

In general, a motion for an order compelling further responses to the request for production of documents “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (§ 2031.310, subd. (b)(1).) In order to establish good cause, the burden is on the moving party to show relevance to the subject matter and specific facts justifying the discovery. (See *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once a showing of good cause is made, the burden shifts to the opposing party to justify his or her objections. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

III. MERITS OF THE MOTION

A. SPECIAL INTERROGATORIES

Respondents request further responses to their special interrogatories, set one, numbers 2 through 35. Petitioner responded to each of these special interrogatories with only objections. As to special interrogatories 2, 3, 4, 6, 7, 8, 10, 11, 12, 14, 15, 16, 18, 19, 20, 22, 23, 24, 26, 27, 28, 30, 31, and 32, Petitioner objected that the interrogatories were not full and complete in and of themselves, in violation of section 2030.060, subdivision (d).³ In her opposition, Petitioner concedes that the authority Respondents cited supporting the form of these interrogatories, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1288 (*Clement*), is on point and she “now recognizes that her objection under section 2030.060(d) was based on a mistaken interpretation of the ‘full and complete in and of itself’ requirement[.]” (Opposition, p. 12:8-25.) She contends that she should have made an objection to special interrogatories 10, 11, 12, 14, 15, 16, 18, 19, 20, 22, 23, 24, 26, 27, 28, 30, 31, and 32 on the ground that they improperly combine multiple discrete inquiries into a single interrogatory in violation of section 2030.060, subdivision (f). But she cannot make those objections now as she failed to raise them in her initial response to the special interrogatories. (See *Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 [waiver occurs where the responding party fails to timely raise an

³ That section states, “Each interrogatory shall be full and complete in and of itself. No preface or instruction shall be included with a set of interrogatories unless it has been approved under Chapter 17 (commencing with Section 2033.710).” (§ 2030.060 (d).)

objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.) Because the sole objection raised in response to special interrogatories 2, 3, 4, 6, 7, 8, 10, 11, 12, 14, 15, 16, 18, 19, 20, 22, 23, 24, 26, 27, 28, 30, 31, and 32 was the section 2030.060, subdivision (d) objection, which Petitioner has conceded lacks merit, the motion is GRANTED as to these special interrogatories.

Petitioner objected to special interrogatories 9, 13, 17, 21, 25, 29, 33, 34, and 35 on the ground that they improperly contain subparts, in violation of section 2030.060, subdivision (f), which provides, “No specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question.” Citing *Clement*, Respondents contend that subparts that are logically and factually subsumed within a single line of inquiry do not make an interrogatory improperly compound. In *Clement, supra*, 177 Cal.App.4th at p. 1291, the Court of Appeal quoted Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, as stating that that “ ‘[t]he rule should probably apply only where more than a single subject is covered by the question. Questions regarding the same subject should be allowed although they include an “and” or “or.” For example: “State your first name, middle name and last name, and your current address and telephone number.” Since only one subject is involved—identification of responding party—the question should not be objectionable because of the “ands” used.’ [Citation.]” Here, Respondents argue that the interrogatories at issue only refer to a single subject matter.

The Court finds that special interrogatories 9, 13, 17, 21, and 25 contain improper subparts. For example, special interrogatory 9 states, “IDENTIFY each item Responding party of JEWELRY YOU contend was improperly distributed, given away, or disposed of by the Trustees, including for each item: (a) a description sufficient to identify the item; (b) YOUR basis for contending the item existed at the time of Decedent’s death; (c) YOUR estimated value of the item; and (d) YOUR basis for that valuation.” This interrogatory asks that Petitioner identify the jewelry but also provide a valuation of each item and the basis for contending the item existed at the time of Trustor’s death. These are separate inquiries that should not be contained in the same interrogatory. The motion is DENIED as to special interrogatories 9, 13, 17, 21, and 25. Nonetheless, Respondents may re-ask these special interrogatories as separate interrogatories with the requisite declaration under section 2030.050.

As to special interrogatories 29, 33, 34, and 35, the Court finds that the subparts of these interrogatories are proper. Special interrogatory 29 provides, “State the total dollar amount YOU contend YOU are entitled to as damages in this action, including for each category of damages: (a) the dollar amount claimed; (b) the method by which YOU calculated that amount; and (c) the identity of any appraisal, valuation, expert opinion, or other document upon which YOUR calculation is based.” Each of the subparts are logically contained within the same interrogatory here because the subparts relate to the calculation of the amount of damages. They do not veer off into other topics in the same way that special interrogatories 9, 13, 17, 21, and 25 do.

As to special interrogatories 29, 33, 34, and 35, Petitioner made several other objections, which have not been adequately justified in her opposition. (See *Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [burden is on the responding party to justify any objections or failure to fully answer] (*Coy*); *Fairmont Ins. Co. v. Super. Ct.* (2000) 22 Cal. 4th 245, 255 (*Fairmont*) [same].) Petitioner contends that the discovery in

general is not calculated to lead to admissible evidence but is intended solely to harass or burden her and that the number of requests at issue is evidence of that motive. These general arguments are insufficient to justify any of the objections raised in her responses to special interrogatories 29, 33, 34, and 35. (See, e.g., *West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417 (*West Pico*) [an objection based on burden must be defended by a showing of the quantum of work required]; *People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 [a point asserted without argument or authority in support is without foundation and requires no discussion].) Accordingly, all objections contained in Petitioner's responses to special interrogatories 29, 33, 34, and 35 are **OVERRULED** except that Petitioner's attorney-client and work product privilege objections to special interrogatory 33 are **PRESERVED**. (See *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1129 [The court may not overrule a privilege objection unless it receives sufficient information to decide whether the objection has merit.].)

As to special interrogatory five, it requests "Describe all legal theories upon which YOU base YOUR claim of entitlement to any specific item of Trustor's JEWELRY or PERSONAL PROPERTY in this action." Petitioner objected on the ground of work product privilege. Section 2018.030, which governs work product privilege, provides, "[a] writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (§ 2018.030, subd. (a).) Here, Respondents are directly seeking Petitioner's legal theories. The Court **SUSTAINS** the work product privilege objection and **DENIES** the motion as to special interrogatory 5.

The motion is **GRANTED** as to special interrogatories 2, 3, 4, 6, 7, 8, 10, 11, 12, 14, 15, 16, 18, 19, 20, 22, 23, 24, 26, 27, 28, 29, 30, 31, 32, 33, 34, and 35. The motion is **DENIED** as to special interrogatories 5, 9, 13, 17, 21, and 25.

B. REQUESTS FOR ADMISSION

As to the requests for admission, at the outset, the Court notes that Respondents requested, in their notice of motion, that the matters stated in their requests for admission be deemed admitted. They cite no authority for that request and they make no supporting argument in their memorandum of points and authorities or separate statement. Moreover, the matters in requests for admission are ordinarily deemed admitted where the responding party fails to respond by the deadline, (see § 2033.280, subd. (b)), but, here, Respondents allege that Petitioner timely responded, albeit after extensions of time. Accordingly, the Court **DENIES** that request. (See *People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 [a point asserted without argument or authority in support is without foundation and requires no discussion].)

Respondents also request further responses to requests for admission, set one, numbers 6, 7, 13, 15, 16, 17, 18, 19, 20, 26, 29, 30, 31, 34, and 35. As to each of these requests, Petitioner denied the request with qualifications. As to requests 6 and 7, Respondent asserts that Petitioner improperly denied these requests despite her purported lack of information. Request 6 asks Petitioner to "[a]dmit that Trustor never signed any written document promising YOU any specific item of jewelry or personal property." Petitioner responded with "Deny" but also stated that she denies that Trustor never promised her specific items of jewelry or personal property but stating that she lacked sufficient information to admit or deny whether Trustor signed a written document to that effect. The Court **GRANTS** the motion as to request 6. Section 2033.220, subdivision (b) provides, "Each answer shall: [¶] (1) Admit so much of

the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” Here, the request only asks about written documents, which Petitioner states she lacks sufficient information about to respond. Accordingly, Petitioner must remove the part of the response denying the request.

Request for admission 7 provides, “Admit that Trustor never made any promise, oral or written, to transfer ownership of any specific item of jewelry or personal property to YOU.” Petitioner denied the request but also interposed an objection based on section 2033.060, subdivision (f), which provides, “No request for admission shall contain subparts, or a compound, conjunctive, or disjunctive request unless it has been approved under Chapter 17 (commencing with Section 2033.710).” The Court finds that request 7 is not improperly compound. Accordingly, the objection based on section 2033.060, subdivision (f) is **OVERRULED**. Petitioner also stated “Responding party denies that Trustor never made any promises regarding other specific items of jewelry or personal property.” Respondents contend that this statement is ambiguous due to the use of the word “other” in the statement. The Court agrees. The motion is **GRANTED** as to request for admission 7.

As to requests 29 and 30, Respondents assert that the responses are internally contradictory. Both requests ask about whether Trustor drafted a written document transferring ownership of or leaving specific jewelry or personal property to Petitioner. Petitioner denies the requests but also states that she lacks sufficient information to admit or deny. The Court agrees that if Petitioner lacks information to admit or deny, she may not deny the requests. The motion is **GRANTED** as to requests for admission 29 and 30.

Respondents argue that requests 13, 15, 16, 17, 18, 29, 20, 26, 31, 34, and 35 are qualified denials that require clarification. As an example, request 15 states, “Admit that YOU took jewelry, including rings owned by Trustor, from the Templeton Court Property on or around December 2024.” Petitioner responded, “Deny. Responding party denies this request except as expressly admitted herein. Responding party admits only that she came into possession of certain items of jewelry, including rings, that were expressly given to her by propounding party on or around December 2024. Responding party denies that she wrongfully or unilaterally took any jewelry from the residence, and denies all remaining allegations of this request.” The Court agrees with Respondents that the responses to these requests are confusing and that they read language into the requests that is not present (for example, “wrongfully” in request 15.) Accordingly, the motion is **GRANTED** as to requests for admission 13, 15, 16, 17, 18, 29, 20, 26, 31, 34, and 35.

As to request 34, Petitioner objected on “the ground that it is vague, ambiguous, and undefined as to the phrase ‘supports YOUR claim of entitlement,’ and improperly calls for a legal conclusion.” Request 34 provides, “Admit that YOU have not produced any written document in this action that supports YOUR claim of entitlement to any specific item of jewelry or personal property.” The Court **OVERRULES** both objections. Petitioner has not attempted to justify her objection that the phrase “supports YOUR claim of entitlement” is vague, ambiguous or undefined. (See *Coy, supra*, 58 Cal.2d at pp. 220-221; *Fairmont, supra*, 22 Cal. 4th at p. 255.) As to the objection that the request improperly calls for a legal conclusion, section 2033.010 provides that “[a]ny party may obtain discovery . . . by a written

request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or *application of law to fact*.” (§ 2033.010, italics added.)

The motion is GRANTED as to requests for admission numbers 6, 7, 13, 15, 16, 17, 18, 19, 20, 26, 29, 30, 31, 34, and 35.

C. REQUESTS FOR PRODUCTION

Respondents seek further responses to requests for production, set one, numbers 9 through 17, 24, 26, and 27. As to numbers 9 through 17, each request seeks “All WRITINGS RELATING TO any written recorded statement discussed in YOUR response” to one of special interrogatories 3, 7, 11, 15, 19, 23, 27, 31, and 33. Petitioner responded to each with an objection stating “Responding Party objects to this DEMAND on the ground that it improperly derives from, and cross-references, Special Interrogatory No. [number] which was wholly objected to as legally defective and procedurally improper.” As the Court has granted the motion as to all of the special interrogatories mentioned in the requests for production at issue, the Court OVERRULES these objections. The motion is GRANTED as to requests for production 9 through 17.

Requests 24, 26, and 27 generally request writings, including photos, of items of jewelry and personal property formerly belonging to Trustor in Petitioner’s possession or gifted by Petitioner to another. Petitioner objected to all three requests based on relevance, overbreadth, undue burden, and the right to privacy. The Court finds that the requests seek relevant discovery because Petitioner has asserted in her petition for accounting that Respondents improperly disposed of Trustor’s jewelry and personal property. (Petition for Order for an Accounting, Removal of Trustee, Distribution, and Redress for Breach of Trust, ¶¶ 31, 34, 36.) Petitioner does not argue that Respondents have failed to show good cause. Petitioner does not defend her privacy objections and, accordingly, they are waived. (See *Coy*, *supra*, 58 Cal.2d at pp. 220-221; *Fairmont*, *supra*, 22 Cal. 4th at p. 255.)

Request 26 seeks “ALL WRITINGS, including photographs, images, or videos of YOU wearing Trustor’s jewelry or personal property, including Trustor’s mink coat, in December 2024. Petitioner contends that this request is not calculated to lead to admissible discovery and that it is raised solely to harass, embarrass, or burden her. (Opposition, p. 16:3-7.) She asserts that the number of requests at issue suggests such a motive. The Court disagrees. To the extent this is an attempt to justify a relevance objection, the Court finds that the images of Petitioner wearing items that formerly belonged to Trustor in December 2024, which Trustor passed away would be relevant because they would show those items in Petitioner’s possession near the time of Trustor’s death. To the extent Petitioner is arguing that production of the images would be unduly burdensome, the Court notes that Respondents are seeking images from a very short period of time, the month of December 2024 and Petitioner has not provided any evidence or argument regarding the quantum of burden the request would cause. (See *West Pico*, *supra*, 56 Cal.2d at p. 417.) Finally, the mere invocation of the right to privacy without any discussion is insufficient to justify an objection based on same. (See *People v. Dougherty*, *supra*, 138 Cal.App.3d at p. 282 [a point asserted without argument or authority in support is without foundation and requires no discussion].) The motion is GRANTED as to requests for production 24, 26, and 27.

The motion is GRANTED as to requests for production numbers 9 through 17, 24, 26, and 27.

D. REQUESTS FOR SANCTIONS

Respondents request sanctions in the amount of \$7,500.00, consisting of 15 hours of attorney work at \$500. The statutes governing the instant discovery motion provide for mandatory sanctions against a party or attorney who unsuccessfully makes or opposes motion to compel further responses unless the court finds “that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§§ 2030.300, subd. (d) [interrogatories]; 2033.290, subd. (d) [requests for admission]; 2031.310, subd. (h) [requests for production].) Here, Respondents have substantially prevailed on the motion and Petitioner makes no argument that the imposition of sanctions is unjust. However, because the motion has not been granted in its entirety, the Court will order sanctions in the amount of \$4,500. Petitioner and/or her counsel are ordered to pay to Respondent’s counsel \$4,500 within 30 days of the date of the Court’s order on this motion.

Petitioner also requests sanctions in the amount of \$4,950 for misuse of the discovery process. Petitioner’s request appears to be tied to her contention that Respondents failed to adequately meet and confer, which the Court has rejected above. Moreover, the Court has granted the majority of the motion. Petitioner’s request for sanctions is DENIED.

CONCLUSION

The motion is GRANTED IN PART AND DENIED IN PART. The motion is DENIED as to special interrogatories 5, 9, 13, 17, 21, and 25.⁴ The motion is GRANTED as to all remaining discovery requests at issue as discussed above.

Petitioner is ordered to provide further code-compliant responses to the discovery request at issue other than special interrogatories 5, 9, 13, 17, 21, and 25, within 30 days of the Court’s order on this motion.

Respondents’ request for sanctions is GRANTED IN PART. Petitioner and/or her counsel are ordered to pay to Respondent’s counsel \$4,500 within 30 days of the date of the Court’s order on this motion. Petitioner’s request for sanctions is DENIED.

The Court will prepare the final order.

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⁴ Respondents may re-ask these special interrogatories as separate interrogatories with the requisite declaration under section 2030.050.